

COMMITTEE ON HEALTH & HUMAN SERVICES
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1113
(Reference to Senate engrossed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 36-510.01, Arizona Revised Statutes, is amended
3 to read:

4 36-510.01. Notice; personal service of process

5 A. A person who is ordered to undergo involuntary evaluation has
6 the right to receive by personal service the documents specified in
7 section 36-529, subsection E. A person who is the subject of a petition
8 for court-ordered treatment has the right to receive by personal service
9 the documents specified in section 36-536, subsection D. Personal service
10 shall be completed by a peace officer, ~~OR~~ a process server or ~~BY~~ another
11 person ~~authorized by rule 4, Arizona rules of civil procedure~~ AS
12 PRESCRIBED BY LAW OR COURT RULE OR AS ORDERED BY THE COURT, personally
13 handing the documents to the person receiving service. The person who
14 serves the specified documents must file a proof of service with the court
15 that specifies the date, time and manner of service.

16 B. IN A PROCEEDING UNDER THIS CHAPTER INVOLVING A PETITION FOR
17 COURT-ORDERED EVALUATION OR COURT-ORDERED TREATMENT, IF THE PROPOSED
18 PATIENT IS ADMITTED TO A FACILITY THAT IS LICENSED AS A SCREENING AGENCY
19 OR AN EVALUATION AGENCY PURSUANT TO THIS CHAPTER AT THE TIME THE PETITION
20 IS FILED, THE COURT MAY AUTHORIZE A PERSON EMPLOYED BY THE SCREENING
21 AGENCY OR EVALUATION AGENCY TO SERVE THE DOCUMENTS SPECIFIED IN SECTION
22 36-529, SUBSECTION E OR SECTION 36-536, SUBSECTION D, AS APPLICABLE, ON
23 THE PROPOSED PATIENT.

24 ~~B.~~ C. A county, city or town that employs peace officers may
25 contract with a process server ~~or another person authorized by rule 4,~~
26 ~~Arizona rules of civil procedure~~ [.] [A SCREENING AGENCY OR AN EVALUATION
27 AGENCY] to provide service pursuant to this section instead of service by
28 a peace officer.

1 ~~E.~~ D. An evaluation agency OR SCREENING AGENCY is not financially
2 responsible [UNDER SUBSECTION A OF THIS SECTION] for serving the documents
3 required by section 36-529, subsection E or section 36-536, subsection D.
4 [E. AN EVALUATION AGENCY OR SCREENING AGENCY MAY ONLY RECEIVE
5 REIMBURSEMENT FOR THE SERVICE OF DOCUMENTS UNDER SUBSECTION B OF THIS
6 SECTION PURSUANT TO A CONTRACT WITH A COUNTY.]

7 Enroll and engross to conform
8 Amend title to conform
And, as so amended, it do pass

SELINA BLISS
CHAIRMAN

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